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BLACKTOWN DEVELOPMENT CONTROL PLAN

2015

Part B

Development in the Rural Areas

Blacktown City Council

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1 Introduction

This Part of Blacktown Development Control Plan (DCP) 2015 should be read in conjunction with Part A (Introduction and General Guidelines). Section 1.5 of Part A contains a list of other Parts of the DCP that may also be relevant to your proposal.

This Part should also be read in conjunction with the Blacktown Local Environmental Plan (LEP) 2015 Written Instrument and associated LEP Maps.

1.1 Land to which this Part applies

This Part of the DCP applies to all land within the Blacktown Local Government Area zoned for rural purposes under Blacktown LEP 2015.

Most of Blacktown's remaining rural lands are located in the North West Growth Centre (NWGC) and will eventually be released by the Minister for Planning and rezoned, mostly for urban purposes, under *State Environmental Planning Policy (Sydney Region Growth Centres) 2006* (Sydney Region Growth Centres SEPP). Once this occurs, Council's LEP and DCP will no longer apply to these lands.

Until such time as Blacktown's remaining rural lands have been released by the Minister and rezoned under the Sydney Region Growth Centres SEPP, Council has a responsibility to ensure that these lands remain agriculturally productive and to ensure that any development that occurs on these lands does not conflict with future urban development.

1.2 Aims and objectives

The aims and objectives of this Part of the DCP are as follows:

- **Aims**

  (a) To provide detailed design guidelines for development on rural land

  (b) To provide guidance for the preparation of a Development Application for development on rural land.

- **Objectives**

  (a) To ensure that Blacktown's remaining rural lands remain agriculturally productive

  (b) To protect the scenic character and environmental values of Blacktown's remaining rural lands

  (c) To ensure that the development of Blacktown's remaining rural lands does not conflict with the NSW Government's future Precinct Plans for the North West Growth Centre.

1.3 The Rural Zone

All of Blacktown's remaining rural lands are zoned RU4 Primary Production Small Lots under Blacktown LEP 2015.

The RU4 Zone is shown in light brown on the Blacktown LEP 2015 Zoning Maps.

The Land Use Table for the RU4 Zone, which is located at Part 2 of the Blacktown LEP 2015 Written Instrument, outlines the RU4 Zone objectives and identifies the types of land uses that are permitted (with or without Council's consent) and prohibited in the zone. The Written Instrument also contains clauses that affect how rural land can be developed and used.

2 Subdivision of rural land

Blacktown LEP 2015 restricts the subdivision of rural land under the provisions of Clauses 4.1 and 4.2.

2.1 Minimum allotment size and minimum subdivision lot size

The size of any lot resulting from the subdivision of rural land must be at least 40 hectares, in accordance with Clause 4.1 of Blacktown LEP 2015 (Minimum subdivision lot size). Clause 4.2 (Rural subdivision) states that land may be subdivided for the purpose of primary production to create a lot of a size that is less than the minimum size shown on the Lot Size Map in relationship to that land. However, such a lot cannot be created if an existing dwelling would, as the result of the subdivision, be situated on the lot and a dwelling cannot be erected on such a lot.

2.2 Additional requirements

Any Development Application involving the subdivision of rural land will be required to demonstrate that each proposed allotment is capable of sustaining reasonable agricultural production and/or is sufficiently flood free (or can be made so) to enable the possible future erection of a dwelling house until such time as land is rezoned under the Sydney Region Growth Centres SEPP. In addition, the Development Application will also need to demonstrate that arrangements can be made to provide essential services, such as suitable road access, in accordance with Clause 7.5 of Blacktown LEP 2015.

3 Dwelling houses

A dwelling house may be erected with Council's consent on a separate parcel of land within the RU4 Primary Production Small Lots Zone where the area of that land is not less than 4,000sq.m.

This provision does not apply to the 'Scheduled Lands' located in the Marsden Park North and West Schofields Precincts that have not yet been rezoned for urban development. See Figures 3.1 and 3.2 for details of where this land is located. The existing pattern of subdivision is highly fragmented and additional land is required for the erection of a dwelling house on the following designated land:

(a) On land marked Clause 4.2A(b) and coloured yellow on the Blacktown LEP 2015 Key Sites map (see Figure 3.1), a dwelling house cannot be erected unless the parcel of land has an area of not less than 10 hectares

(b) On land marked Clause 4.2A(c) and coloured blue on the Blacktown LEP 2015 Key Sites map (see Figure 3.2), a dwelling house cannot be erected unless the parcel of land has an area of not less than 2 hectares.

For more information regarding the 'Scheduled Lands' as outlined above, please refer to the 'Scheduled Lands Interim Policy on Existing and Further Development' adopted by Council on 7 September 1994. The Policy provides a land use table identifying permissible development within these areas along with their relevant and correct planning approaches to each category of development. This Policy will apply to the Scheduled Lands until the Marsden Park North, West Schofields and Riverstone East Precincts are rezoned for urban purposes.

A copy of the Policy is available on Council's website and upon request at the Customer Service Centre.

An applicant proposing to erect a dwelling house on land within the rural zone should demonstrate that the proposed siting of the dwelling house maximises the natural advantages of the land in terms of:

(a) Providing flood-free access to the dwelling house and a flood-free location for the dwelling house itself

(b) Solar access

(c) Retaining the existing vegetation on the land

(d) Locating the dwelling house in a manner likely to be consistent with any future urban development of the land.

Reference should also be made to Section 5 (Services) of this Part for servicing requirements for development in the rural zone.

The building line from a local street is 7.5m. Where the site fronts any road zoned SP2 Infrastructure (Classified or Local) a 10m building line applies.



Figure 3.1 Land either side of Garfield Road West, Riverstone subject to Clause 4.2A(b)



Figure 3.2 **Land fronting Cranbourne Street and Clarke Street, Riverstone subject to Clause 4.2A(c)**

4 Farm buildings

Restrictions apply to the construction of farm buildings to ensure that sheds and other buildings erected in rural areas cannot be converted to dwellings. These restrictions are not meant to deter the legitimate rural use of land, but are necessary to meet the aims and objectives of Blacktown LEP 2015, *Sydney Regional Environmental Plan No. 19 - Rouse Hill Development Area (REP 19)* and Sydney Region Growth Centres SEPP in ensuring that development in the rural zone does not hinder the proper and orderly development of future urban land.

There is no minimum area of land required for farm buildings. However, an applicant is required to demonstrate that the farm building is ancillary to a legitimate agricultural use or ancillary to a legal dwelling on the site.

The building line from a local street is 7.5m. Where the site fronts any road zoned SP2 Infrastructure (Classified or Local) a 10m building line applies.

5 Services

Any development proposed within the RU4 Primary Production Small Lots Zone will be required to provide an appropriate level of services to match the intensity of the development.

Council cannot grant development consent unless essential services are provided in accordance with Clause 7.5 of Blacktown LEP 2015 (Essential Services).

Other requirements relating to the provision of services are contained in Part A of Blacktown DCP 2015.

6 Environmental protection

All issues relevant to environmental protection, including tree preservation and cultural heritage, are discussed in detail in Part A of this DCP. All issues relating to water management are discussed in detail in Part J of this DCP.

There are many items of environmental and archaeological significance located throughout the rural zone. These items are particularly important because the nature of previous rural development has left many of these items intact. Council is concerned that any such items are preserved and incorporated in any future development proposals and treated in such a way so as to ensure their continuing presence and role in enriching the environment of Blacktown.

Clause 5.9 of Blacktown LEP 2015 (Preservation of trees or vegetation) requires that Council's consent is obtained before any tree is removed, cut or lopped in any way. Council views this provision to be of particular importance in the rural zone where more opportunities exist to retain the vast stock of existing trees because of the larger sites available for development.